CLIENT AGREEMENT

Terms and Conditions

Between

Fiducia Capital (DIFC) Limited

Licensed by the Dubai Financial Services Authority, License No. F004535,

Unit OT 15-38, Level 15, Central Park Offices
DIFC, PO Box 507109
Dubai, United Arab Emirates

(hereinafter referred to as **"Fiducia"** or the **"Firm"**)

And

XXXXXXXXXXXXX

(hereinafter referred to as the **"Client"**)

CLIENT AGREEMENT

This agreement is dated _____ and made between:

1. **[Client name]**, a [ ] national holding passport number [ ] [a company headquartered in [country], having its registered address at _____] (the "**Client**"); and

2. **Fiducia Capital (DIFC) Limited.**, a limited by shares company incorporated in the Dubai International Financial Centre ("**DIFC**") and authorized and regulated by the Dubai Financial Service Authority ("**DFSA**"), having its address at Unit OT 15-38, Level 15, Central Park Offices, Dubai International Financial Centre, Dubai, United Arab Emirates (herein referred to as "**Fiducia**" or the "Firm");

   (each referred to individually as "**Party**" and collectively as "**Parties**".)

1. INTRODUCTION

1.1. The Client and Fiducia have agreed to enter into this Agreement (as defined below) as the basis upon which the Firm will provide certain Financial Services to the Client in and from the Dubai International Financial Centre ("**DIFC**").

1.2. Fiducia's agreement with the Client is comprised of:

   (a) this financial services agreement;

   (b) the Client Application Form, Client Investment Risk Profile Form and any other forms or documents required by Fiducia (together the "**Client Information Pack**);

   (c) any schedule of fees or other fee letter notified by Fiducia (including via Fiducia's website or included in the Service Terms);

   (d) any other documents or notices prepared by Fiducia containing specific terms applicable to services offered to the Client; and

   (e) any other documents, forms or terms annexed or scheduled to any of the above.

   which are all to be construed as one document together (this "**Agreement**") and constitute a Client Agreement for the purposes of the Conduct of Business Module of the Dubai Financial Services Authority ("**DFSA**") Rulebook.

1.3. The Annexures attached (herein after referred to as the "**Annexures**" hereto form part of this Agreement and the Client hereby undertakes to inform Fiducia of any change in any of the information stated in the Annexures (as amended from time to time).

1.4. Capitalised terms not otherwise defined in this Agreement are used in the context as defined in the DFSA Rulebook.

1.5. All Services (as defined below) are provided on the basis that the Client is either a "Professional Client" or a "Market Counterparty". Fiducia does not provide services to Retail Clients (as classified by DFSA COB Rule).

1.6. Fiducia is regulated by the DFSA (under reference number F004535) as an Authorised Firm to carry out the following Financial Services in and from the DIFC:

Financial Services	In respect of the following
• Advising on Financial Products	• Certificates • Debentures • Futures • Options • Shares • Structured Products • Warrants • Units
• Arranging Deals in Investments	• Certificates • Debentures • Futures • Options • Shares • Structured Products • Warrants • Units
• Managing a Collective Investment Fund	• Restricted to fund management in respect of Qualified Investor Funds and Exempt Funds
• Managing Assets	• Certificates • Debentures • Futures • Options • Shares • Structured Products • Warrants • Units
• Arranging Custody	• Certificates • Debentures • Futures • Options • Shares • Structured Products • Warrants • Units
• Arranging Credit and Advising on Credit	

Fiducia holds an additional endorsement of Holding or Controlling Client Assets and where mandated by the Client, will offer the Financial Services referred above to the Client on the terms set out in this Agreement.

1.7. Fiducia is located at:

Unit OT 15-38, Level 15,
Central Park Offices, DIFC,
PO Box 507109, Dubai, UA
Tel:+97142222906

Email: info@fiduciacapital.com

1.8. Fiducia is a Fully-Owned Subsidiary of Fiducia Capital Holdings Limited ("**Fiducia Holdings**"), a company incorporated under the laws of Cayman Islands with commercial registration number 346021.

2. TERM

2.1. This Agreement shall come into force immediately when one or more of the following occurs:

(a) when Fiducia communicate with you that it has accepted your application relating any of our Services provided under this Agreement; and/or

(b) when you use, or agree to use, any of the Firm's Services under the applicable Service Terms.

each the "**Effective Date**".

2.2. This Agreement shall commence on the Effective Date and continue in full force and effect until terminated in accordance with this Agreement.

2.3. In case of joint accounts, the Client as a Joint Account Holder[1] confirms in writing that investment decisions relating to the joint accounts are generally made for, or on behalf of the Joint Account Holder by the Primary Account Holder.

2.4. In case of joint accounts, any amendment in operational instructions/signing conditions or any other changes in relation to information provided in this Agreement and the Client Forms must be given by the Joint Account Holder and the Primary Account Holder irrespective of the mode of operation/signing conditions. Failure to do so will result in Fiducia taking appropriate action including termination of the relationship.

3. SCOPE OF THE ENGAGEMENT

3.1. If Fiducia agrees to provide the Client with the following services:

(a) Arranging Deals in Investments

(b) Advising on Financial Products

(c) Arranging Credit and Advising on Credit

(d) Arranging Custody

(e) Managing Assets

(together the "**Services**").

Fiducia holds an additional endorsement for Holding or Controlling Client Assets. The Client will be required to enter into further terms and conditions relevant to that particular service (each "**Service Terms**"). The applicable Service Terms will then apply to the Client and will form part of this Agreement with Fiducia.

[1] the Joint Account Holder must be a family member of the Primary Account Holder. A "family member" of the Primary Account Holder is: his spouse; his children and step-children, his parents and step-parents, his brothers and sisters and his step-brothers and step-sisters; and the spouse of his children and step-children, his parents and step-parents, his brothers and sisters and his step-brothers and step-sisters

Fiducia does not undertake any Financial Services activities in relation to crypto currencies does not provide Services in relation to Crypto Tokens.

3.2. As a part of the provision of any Services, the Client may also be required to complete additional agreements, documents or forms as prescribed by Fiducia from time to time, all of which will form a part of this Agreement.

3.3. In providing the Services pursuant to this Agreement, Fiducia acknowledges and agrees that it shall act in good faith and with due diligence.

3.4. The Client acknowledges and agrees that:

(a) where Fiducia will be engaging in discretionary mandates to manage Client's assets/ portfolios and take investment decisions on behalf of the Client, the decisions will be made in line with the signed mandate and the agreed strategy-Fiducia will rely on the information and facts concerning the Client's experience, knowledge, risk appetite and financial circumstances which have been expressly disclosed to Fiducia and it is the Client's responsibility to promptly notify Fiducia in writing if there is any material change in that information;

(b) where Fiducia is not providing non-discretionary asset management services, where the investment decisions are taken by the Client and any transaction will be undertaken on an execution-only basis.

(c) Fiducia does not give advice on legal, tax, accounting or other specialist matters in any jurisdiction in connection with the Services and accordingly neither Fiducia nor any of its respective directors, officers, employees or agents (each a "**Relevant Person**") shall incur any responsibility or liability with respect to any recommendation, comment, action or omission made by it or any Relevant Person in relation to any such matter; and

(d) it shall be solely responsible for obtaining all advice as it deems necessary or appropriate in respect of such matters referred to in (c) above.

4. SUITABILITY

4.1. When advising its Clients, Fiducia conducts an assessment of the suitability of financial products and transactions to the Client's situation to the extent required by the local laws and regulations.

4.2. As a result, where the Client is classified as a Professional Client, Fiducia will consider the suitability of any investment for the Client according to the Client's investment objectives, financial situation, risk tolerance, experience, understanding of the risks involved, and any other relevant facts about the Client of which Fiducia may become aware.

4.3. When advising the Client pursuant to any investment advisory mandate, Fiducia shall provide advice in accordance with the Client's stated risk profile and needs. Therefore, Fiducia will ensure that periodic reviews consider the ongoing suitability of the Client's profile and it will sufficiently document this review and assessment.

4.4. For avoidance of doubt, Fiducia will not consider suitability for the Client, where it undertakes an Execution-Only activity only for the Client.

4.5. Fiducia will undertake proper suitability assessment in connection with advice given to the Client and will ensure that the suitability regimes are based on specific Client's needs rather being product-driven.

4.6. Where Fiducia decides to limit the extent to which it will consider suitability when making a recommendation, a written warning will be provided to the Professional Client in the form of a notice clearly stating that Fiducia will consider suitability only to the extent specified in the notice. The Client must express his consent, after a proper opportunity to consider the warning, by signing that notice confirming that he understands the warning and consent to the limited suitability assessment. The written warning will be in a stand-alone document, it is not included in the Client Agreement or any other documents issued to the Client and it will be provided prior to providing the financial services.

5. ACCOUNT

The Client has opened various account(s) and/or may open new account(s) (collectively, the "**Accounts**" and each, an "**Account**") with various custodians and banks (collectively, the "**Service Providers**" and each, a "Service Provider") for Investments from time to time held in or credited to the Accounts. the Client understands and agrees that it is the Client's sole responsibility to open Accounts and that the Fiducia will not provide custody or hold any monies or investments on behalf of the Client.

6. CLIENT INSTRUCTIONS

6.1. Fiducia will only receive instructions from those persons authorised to communicate with it in accordance with existing written arrangements (which will remain effective until such time as Fiducia receives written cancellation of such person's authority, regardless of entries to the contrary in any public register or otherwise). Where more than one person has been authorised in writing to provide instructions or communicate on the Client's behalf, Fiducia will assume that each such person can exercise such authority alone, unless at the time of providing such authority or thereafter restrictions or limits are notified in respect of an authorised person.

6.2. Except as otherwise specified by Fiducia from time to time, and depending on the nature and content of such communication, such communication may be sent to Fiducia:

(a) in writing, by telephone +97142222906 or by email to an address provided to the Client, from time to time; or

(b) via electronic communication channels approved for use by Fiducia for the purposes of this Agreement from time to time. For the avoidance of doubt, communications via social media channels, including WhatsApp or similar platforms, shall not be considered a valid communication method under this Agreement.

6.3. Fiducia may, from time to time and in its discretion, require the Client to send communications in a specific form or by a specific method, depending on the Client's profile or the Service to which the communication relates, or for any other reason that Fiducia considers appropriate.

6.4. All communications will only be deemed to be validly given or served by the Client when received by Fiducia. Instructions will only be considered to have been received, on receipt by Fiducia, when they are received during usual business hours, or at the start of the next business day. When the instructions are received outside usual business hours or on a public holiday they will be processed during the next business day.

6.5. The Authorisation and Indemnity in Respect of Telephone, Email and Telex Instructions provided in Annexure 2 must be acknowledged, signed, and agreed by the Client.

7. EMAIL AND ELECTRONIC COMMUNICATION

7.1. The Client hereby expressly authorises Fiducia to correspond with it, or its duly authorised representatives by electronic mail (e-mail) and Fiducia is authorised to rely upon, to act in accordance with and to execute and treat as binding any instructions given by email.

7.2. The Client should observe special caution when using telecommunications media that operate over the Internet, since connecting to an unsecured network entails not only the usual risk of malfunctions but also the risk of intrusions, viruses, hacking and the usurping or falsification of login authentication.

7.3. The Client shall assume all the risks inherent to the telecommunications media, which are used, particularly the risk of fraud arising from the handling of senders' content or data, the absence of confidentiality, incorrect addresses and delays, not to mention the risks associated with viruses. Fiducia is released from any liability whatsoever for loss or damage which the Client may suffer as a consequence of using such media, except in the event of gross negligence on the part of Fiducia.

7.4. The Client acknowledges and agrees that:

(a) Fiducia shall be entitled in its sole discretion to refuse to accept or to execute an email instruction or to require receipt of an original or facsimile instruction or phone confirmation prior to executing such instruction;

(b) Fiducia shall send, by electronic mail, account statements, statements of securities deposited and/or any other information concerning any relevant facility, portfolios or bank(s) account(s); and

(c) transmission by telephone or any other electronic means, including e-mail, is an expeditious means of communication and has various risks inherent and associated with this form of communication and it is fully prepared to accept such risks.

8. FEES AND CHARGES

8.1 Details of the fees and charges payable by the Client for the provision of the Services may be found in the Schedule of Fees provided in Annexure 1 or as otherwise notified by Fiducia). The Client agrees that Fiducia is entitled to amend the fees from time to time, by providing the Client with 30 days' notice of any such amendment, in writing. The Client shall be deemed to have consented and agreed to the amendments to the fees if the Client continues to utilise the Services under this Agreement post the date of dispatch of the notification from Fiducia of such amendment.

8.2 The Client is also liable for all costs, fees, charges, expenses, levies, taxes and duties arising from or in relation to the Services by Fiducia and/or its affiliates or any third-party Service Provider appointed in connection with the same.

8.3 The Client consents to Fiducia deducting any such costs, fees, charges, expenses, levies, taxes and duties from any Client account without providing any prior notice. The Client also agrees that Fiducia shall have recourse to Investments held in custody on behalf of the Client (including placing a lien and having the right to sell or otherwise dispose of such Investments and to appropriate all or part of the proceeds thereof) for payment of such fees and costs.

8.4 Any delay in making payment of fees will result in cancellation of Services under this Agreement, which Fiducia may stop forthwith and without any notice being provided to the Client thereof. Additionally, Fiducia will have recourse under the laws of the DIFC to seek damages for non-payment of fees along with interests and costs for the period Services as described in this Agreement have been provided to the Client by Fiducia.

8.5 All payments due under this agreement are subject to applicable value added tax as per Federal Decree - Law No. (8) of 2017 on Value Added Tax ("VAT Law") published by the United Arab Emirates Ministry of Finance.

9. OTHER PROFESSIONAL ADVISERS

The Client agrees to secure the services of other appropriate professional advisers to the extent reasonably requested by Fiducia. The fees and expenses of those professional advisers (e.g. lawyers and accountants) retained to advise the Client will be borne by the Client. Fiducia will not engage any professional advisers, except with the prior written agreement of the Client.

10. TERMINATION

10.1. Subject to the provisions of any Service Terms, this Agreement may be terminated by either party by 30 days prior written notice.

10.2. Notwithstanding Clause 10.1, this Agreement may be immediately terminated, without any notice requirement by Fiducia, and all outstanding payments hereunder or in connection herewith will become immediately and irrevocably due:

(a) if the details and documents required under Clause 11 and Clause 13 are not provided to the satisfaction of Fiducia;

(b) upon the commencement of proceedings for bankruptcy, liquidation, winding-up or any similar of the Client or analogous event or situation in any jurisdiction;

(c) in the case of Fiducia being so required by any competent court, regulatory or supervisory authority;

(d) if the Client fails to pay any fees, charges, costs, or other monies due to the Fiducia or any third-party Service Providers payable under Clause 5 and Annexure 1 at the time at which such monies become due and payable;

(e) if Fiducia believes that funds held for the Client have been obtained through unlawful means or that such funds are being used to effect suspicious transactions;

(f) if the Client does not, upon request by Fiducia, provide Fiducia with any information or documents relating to the Client that Fiducia is or may be required to maintain in accordance with any applicable law and/or this Agreement;

(g) if Fiducia deems that the continuing provision of the Services poses a reputational, regulatory, operational, or any other risk to Fiducia;

(h) if the Client has breached any terms of this Agreement and has not remedied such breach within 30 days after the service of notice by Fiducia requiring such breach to be remedied;

(i) if Fiducia believes that the Client may be in breach of any applicable law; and/or

(j) if there are any other valid reasons why Fiducia believes it is necessary to do so.

10.3. Notice of termination of this Agreement shall not affect the rights obtained and duties incurred prior to the effective date of such termination.

11. ACCURACY OF INFORMATION

In providing the Services under this Agreement, Fiducia will be using and relying on publicly available information and information provided by or on behalf of the Client. The Client shall ensure that all information furnished to Fiducia stated to be accurate and complete will be at the time it is provided accurate and complete in all material respects. It is understood and acknowledged that Fiducia may assume and rely upon the accuracy and completeness of such information, however the Client shall not assume any responsibility with regard to the accuracy of any publicly available information, whether provided by the Client or available in the public domain.

12. WARRANTIES AND REPRESENTATIONS

12.1. Each of the representations and warranties set out in this Clause are given by the Client on the date of this Agreement and are deemed to be repeated by the Client, by reference to the circumstances then prevailing, each day during the term of this Agreement.

12.2. The Client hereby represents and warrants to Fiducia that:

(a) it has the power, capacity and authority to enter into and perform it obligations under this Agreement or any transaction contemplated by this Agreement;

(b) this Agreement has been duly and validly authorised, executed and delivered by the Client and is a valid and binding agreement enforceable against it in accordance with its terms;

(c) nothing in this Agreement conflicts with any other obligation that the Client is bound by, whether arising under contract, operation of law or otherwise and by signing this Agreement the Client will not be breaching any term of provision under any other agreement it is a party to;

(d) any authorised persons or authorised signatories communicated to Fiducia in writing, are duly authorised by the Client and such authorisation has not been revoked. Fiducia are entitled to assume that any instructions, notices, authorisations, commitments or requests (whether in writing or not and however communicated to us) have been properly authorised by the Client if they are given or purport to be given by an individual or person who is or purports to be and is reasonably believed by Fiducia to be authorised by the Client to give such instructions, notices, authorisations, commitments or requests;

(e) any information provided by the Client is correct, true and complete to the best of its knowledge. The Client agrees that Fiducia may rely on this information to decide if the Client qualifies as a Professional Client under the DFSA rules;

(f) it shall promptly provide Fiducia with any other relevant information which it may reasonably request from time to time. Additionally, the Client shall promptly notify Fiducia if there is any material change in any information the Client has previously provided to Fiducia or of any changes in the Client's financial situation or any other event that may have an impact on Fiducia's ability to provide the Services;

(g) it will be acting as principal and for its own account at all times in relation to the services provided by Fiducia;

(h) it is aware that its tax liability (if any) will depend on its own particular circumstances, that the impact and consequences of local or foreign taxation implications remain its responsibility at all times, that it will consult a tax specialist before investing in specific

Investments and that Fiducia will not be liable for any taxes arising from purchases or sales of Investments made on the Client's behalf;

(i) it is of full legal age and has the legal capacity to execute, deliver or perform this Agreement and to make the Investments envisaged thereby (where the Client is an individual);

(j) it has been duly organized and is validly existing under the laws of its applicable jurisdictions and provided supporting due diligence documents, with full power and authority to enter into and perform its obligations under this Agreement (where the Client is a corporate entity);

(k) it has been provided with, and has read and understood, adequate information regarding any Services to be provided under this Agreement, to enable it to make informed decisions;

(l) neither it nor any of its affiliates:

(i) are a person that is listed on, owned or controlled by a person listed on, a sanctions list, or a person acting on behalf, or at the direction, of such a person located in or organised under the laws of a country or territory that is the subject of country- or territory-wide sanctions or a person who is owned or controlled by, or acting on behalf or at the direction of, such a person or otherwise the direct or indirect target of sanctions; or

(ii) is engaging in or has engaged in any transaction that evades or avoids, or has the purpose of evading or avoiding, or breaches or attempts to breach, directly or indirectly, any applicable sanctions; and

(iii) it will not use any of the Services, or other funds maintained with Fiducia or third-party provider or resulting from the relationship with Fiducia, for any transaction, either directly or indirectly, with any person located or domiciled in a sanctioned or prohibited country, with any sanctioned or restricted person, or for any unlawful purposes.

12.3 Fiducia hereby represents and warrants to the Client that:

(a) it has been duly organized and is validly existing under the laws of the DIFC, with full power and authority to enter into and perform its obligations under this Agreement;

(b) it will comply with any laws, regulations and policies applicable to Fiducia, the investments, and its other obligations under this Agreement; and

(c) It will maintain all governmental and regulatory licenses, registrations, approvals and exemptions required by law as may be necessary to continue to perform its obligations under this Agreement.

13. CUSTOMER DUE DILIGENCE REQUIREMENTS

13.1 Prior to or within a period of 30 days from the date of signing of this Agreement (but in any event prior to the provision of any Service), the Client shall provide Fiducia with all such details and documents as may be required by Fiducia in order to complete its customer due diligence, anti-money laundering and any other obligations required as per the DFSA Rulebook, under DIFC or other applicable law. The Client acknowledges and agrees that Fiducia shall have full discretion to decline to provide any Service to the Client and reserves the right to terminate the relationship (and any agreement documenting the same) between the Client and Fiducia if the customer due diligence procedures or requirements have not

been completed to Fiducia satisfaction within a period of 30 days from the date of signing of this Agreement.

13.2 The Client shall provide Fiducia at its request with all necessary or useful information in connection with the business relationship, in particular all information relating to the origin of their assets and all information enabling the Firm to comply with its regulatory obligations. The Client shall inform the Firm in writing of any change in the information they have provided to Fiducia, particularly as regards names, nationalities, domiciles, tax statuses, addresses or contact details, whether such information concerns the Client, a representative or a beneficial owner.

14. CLIENT CLASSIFICATION

14.1. Fiducia has classified the Client as either a "Professional Client" or as a "Market Counterparty" by issuing a client classification notice specifying such classification (the "**Client Classification Notice**") for all of the Services which may be provided to the Client and the Client hereby confirms that it has consented to such classification.

14.2. The Client acknowledges that Fiducia only carries out its services with or for Professional Clients and Market Counterparties and the relevant consequences thereof, which include without limitation, that the Client will not be afforded with the retail customer protections and compensation rights that may generally be available to a Retail Client under the DFSA Rulebook, and the Client hereby confirms its understanding of the same.

14.3. The Client acknowledges and agrees that if it wishes to exercise its right to elect to be classified as a Retail Client, it must notify Fiducia in writing within 5 days of the Effective Date. The Client further acknowledges and agrees that Fiducia, does not carry out business with or for Retail Clients and therefore if it does request classification as a Retail Client, or if it no longer meet the relevant requirements for categorisation as a Professional Client or as a Market Counterparty, Fiducia will not, or no longer be able to provide the Client with the Services contemplated under this Agreement.

14.4. The Client represents and confirms that, as of the date of this Client Agreement, the Client is eligible to be classified as a Professional Client. The Client agrees that it will notify Fiducia immediately if, at any point in time, the Client considers that it would no longer fall within the definition of a Professional Client.

15. COMPLAINTS AND RESOLUTION

15.1. If an expression of dissatisfaction relating to the provision of, or failure to provide, an advice or a service and/or a statement by the Client stating that they are making or wish to make a complaint is received, it will be investigated thoroughly and promptly, in accordance with the DFSA regulations and requirements.

15.2. All complaints should be made in writing and directed in the first instance to Fiducia's Compliance Officer at compliance@fiduciacapital.com or by visiting Fiducia's website. The complaint will be acknowledged within 3 to 5 days of receipt based on Fiducia' policy.

15.3. On receipt of a verbal complaint, an employee of Fiducia will complete the Complaints Notification Form. This will be submitted to the Compliance Officer for further investigation.

15.4. The Compliance Officer will nominate a person who is not directly involved in the matter to carry out an investigation and within 30 days of the complaint will write to the Client to explain Fiducia's views on the matter and the action, if any, it proposes to take. If the complaint can't be resolved in 20 business days, the Compliance Officer will notify the Client and indicate the time needed to resolve the complaint. The DFSA expects that most complaints should be resolved within 60 days from the date of receipt.

15.5. Fiducia will try to resolve the Client's complaint as quickly as possible and to his complete satisfaction. If the complaint is not resolved within 60 days, the complainant must be informed of their rights to pursue the complaint further. Therefore, if Fiducia is unable to satisfactorily address the Client's complaint, he may be able to refer his complaint to the DFSA for independent assessment. If the complainant is not satisfied with the terms of redress offered, Fiducia will inform the Client of other venues, if any, for resolution of the complaint and provide him with the appropriate contact details upon request. Such other venues for resolution of a complaint may include an external dispute resolution scheme, arbitration or the DIFC Court.

16. DISCLOSURE OF CLIENT-RELATED DATA

16.1. Fiducia will observe the requirements of the DIFC Data Protection Law 2020 (the "**DP Law**") in the performance of their obligations under this Agreement.

16.2. Any Personal Data (as defined in the DP Law and if relevant, Special Categories of Personal Data (also defined in the DP law) (together the "**Personal Data**") that Fiducia (as a Data Controller) may hold about any individuals associated with the Client, may include, without limitation, identification and authentication information, contact information and financial information. This Personal Data may come from: (i) information received from the Client; (ii) gathered from the Client's interactions with Fiducia, for example, the Client's use of the services; or (iii) from external parties for example but not limited to, credit reference agencies or fraud prevention agencies.

16.3. Fiducia shall process the Personal Data for the purposes of: (i) implementing the arrangements set out in this Agreement; (ii) for any purposes connected with any services offered by Fiducia or by affiliates, including for direct marketing purposes; (iii) to carry out regulatory checks and meet obligations to regulators; (iv) to prevent and detect fraud, money laundering and other crime; (v) to assess and improve services and for training and quality purposes; (vi) to comply with all applicable laws, rules and regulations; and (vii) to enable Fiducia to enforce their rights under this Agreement if necessary.

16.4. Personal Data may be disclosed to the DFSA, the UAE Central Bank or any other regulatory, supervisory, fraud detection, credit referencing, tax or other authorities upon request or otherwise as required by Fiducia. Fiducia may also disclose and transfer Personal Data to third party Service Providers, counterparties, affiliates or agents and advisers (including subcontractors) or to any other party that Fiducia engages for the purposes of carrying out the services or processing a transaction for the Client or for processing or storing the Client's information.

16.5. Fiducia may transfer Personal Data to third parties outside of the DIFC, for the purposes set out in this Agreement. Where a transfer, is being made to either to a jurisdiction which does not provide an adequate level of protection under the DP Law or where the appropriate safeguards are not in place, the Client acknowledges their awareness that the data protection legislation outside the DIFC may not offer the same level of protection as the DP Law.

16.6. Fiducia may retain the Personal Data for such period as considered necessary to comply with legal or regulatory obligations or to defend any potential claim. Under the DP Law the relevant individuals have the right to see the Personal Data Fiducia holds about them, request rectification or erasure of any Personal Data held by Fiducia and restrict or object to the processing of any of their Personal Data by Fiducia.

16.7. Fiducia's privacy policy will be provided to the Client in a separate document.

16.8. The Client may contact Fiducia for further information about the processing of Personal Data by post (letter addressed to the Compliance Officer), by email or by completing a contact form on the website.

16.9. If the Client wishes to access and/or revise their personal data, or desires to withdraw its consent to the collection, use or disclosure of their personal data please contact your Relationship Manager or submit a written request (with supporting documents, if any) to Fiducia, which shall strive to respond to the Client within 30 days from the submission of the request.

16.10. Where the Client withdraws their consent to any or all use or disclosure of the Client's personal data, depending on the nature of the request, Fiducia may not be in a position to continue to provide our services or products to the Client. Such withdrawal may result in the termination of this Agreement or any other agreements the Client may have with Fiducia. All our rights are reserved in such event.

17. CONFIDENTIALITY

17.1. Each Party shall at all times respect and protect the confidentiality of information acquired in consequence of this Agreement and shall not disclose any such information to any person, firm or Client whatsoever, except pursuant to any right or obligation to which either Party may be entitled or bound under compulsion of law or pursuant to the requirements or request of any competent regulator or governmental body or in our case, where reasonably necessary for the performance of our Services. This Clause shall not apply to information, which is in the public domain otherwise than due to a breach of this Clause.

17.2. Nothing in this Clause shall prevent the disclosure of information by either Party to its respective auditor, legal or other professional adviser, or in Fiducia's case, to any member of the Fiducia Group or any counterparty, broker, dealer or other third-party Service Provider, where and only to the extent reasonably required for the proper performance of its respective duties under this Agreement or in relation to any other regulatory or legal requirement or request.

17.3. If Fiducia knows or suspects that the Services may be used in relation to the proceeds of crime, financial terrorism and/or for money-laundering or any related activities, Fiducia is obliged to report the fact and nature of our knowledge or suspicion to the relevant authority in the UAE and the DFSA and to such other local or foreign regulatory or supervisory authorities as may be applicable.

17.4. The Client hereby appoints and designates Fiducia to be its contact with any other third-party Service Provider and the Client confirms that, for the purposes of this Clause, this authorisation and acknowledgement is intended to be for Fiducia's benefit.

18. CONFLICT OF INTEREST

18.1. Occasions can arise where Fiducia, or one of its clients, will have some form of interest in the business that it is transacting for the Client. If this happens, Fiducia will inform the Client in writing and obtain its consent before Fiducia carries out the Client's instructions and detail the steps Fiducia will take to ensure fair treatment. Fiducia have arrangements in place to ensure its clients are treated fairly and have a conflict of interest policy in place as part its Compliance Manual to help manage the risks. The Client may ask for a copy of this policy at any time.

18.2. Fiducia or one of its affiliates may have an interest, relationship or may have entered into arrangements in connection with any Services offered by Fiducia or by its affiliates ("**Interest**"). Such an Interest may not be separately disclosed to the Client before or at the time the Client enters into any transaction or arrangement upon Fiducia's advice or recommendation.

18.3. At least every 25 business days, Fiducia reconciles its records of Client Accounts held with Third Party Agents with monthly statements received from those Third-Party Agents. Furthermore, at least every six months, Fiducia counts all Safe Custody Investments that it

physically holds, or via the Nominee Company, and reconciles the result of that count to its records. Fiducia also reconciles individual Client ledger balances with its records of Safe Custody Investment balances held in Client Accounts. Fiducia will ensure that the reconciliation process does not give rise to a conflict of interest. It will maintain a clear separation of duties to ensure that the reconciliation is not performed by an employee with responsibility for operating Client Accounts or an employee that has authority over Safe Custody Investments.

19. SEVERABILITY

18.1 If any provision of this Agreement is or becomes illegal, invalid or unenforceable in any jurisdiction, that shall not affect the legality, validity or enforceability:

(a) in that jurisdiction of the rest of that provision or of any other provision of this Agreement; or

(b) in any other jurisdiction of any provision of this Agreement.

20. LIMITATION OF LIABILITY

19.1 Each Party shall perform its duties and obligations under this Agreement with all due care, skill and diligence and will hold the other Party and its respective partners, directors, officers, and employees (the Party and each such person being an "**Indemnified Party**") harmless and indemnify it in respect of any loss, expense, or claim (including the reasonable cost of defending any such claim) which such Indemnified Party may incur as a result of the gross negligence or willful misconduct of the defaulting Party in complying with its duties under this Agreement.

19.2 Fiducia makes no representation, warranty or guarantee as to the performance of the Client's portfolio. Fiducia will provide advice, subject to the provisions of this Agreement, in accordance with its usual business practice and the legislation administered by the DFSA and will not be liable for any loss resulting from any decline in value of the Client's portfolio (due to market conditions and/or transaction costs incurred), Investments or transactions executed.

19.3 Either Party will not be liable in any case to the extent that any loss, claim, damage, liability or expense is primarily attributable to the proven gross negligence, fraud, willful or deliberate misconduct of an Indemnified Party.

19.4 The Client shall be liable for any damage resulting from civil incapacity on their behalf if Fiducia could not have known of this incapacity using ordinary due diligence. The Client shall always be liable for any damage resulting from incapacity on the part of any holder of a power of attorney or third party.

21. TELEPHONE AND ELECTRONIC RECORDING

21.1. The Client is hereby informed that in order for Fiducia to fulfill any contractual obligation with the Client it would engage in recording telephone discussions and electronic communications (including instructions or orders) it has with the Client or any third parties including any authorised persons, directors, officers, employees and representatives of the Client and that such recordings and communication will be kept by Fiducia in any medium, and will be Fiducia's sole property. If relevant, the Client agrees to obtain any necessary consents from (and give any necessary notice of these recordings and retention to) its authorised persons, directors, officers, employees and representatives.

21.2. Telephone and electronic recordings may be used for regulatory purposes or for the purpose of evidencing communication between the Parties and the Client hereby agrees that such

recordings may be admissible in evidence in any proceedings and that Fiducia may deliver copies of all communications or transcripts of such recordings to any court or regulatory authority without any restriction or limit in time or in jurisdiction.

21.3. The Client agrees to hereby waive any right which may entitle it to apply for the auditing or production of the recordings or records, other than to comply with an order of a court or other relevant authority with jurisdiction over Fiducia.

21.4. Voice and electronic communication recordings will be retained for a minimum of six years.

22. TAX

22.1. Fiducia shall not provide any advice to the Client regarding tax, legal or other regulatory implications of investments in particular or the Client's tax position in general. The Client is recommended to consult a tax and/or legal specialist regarding such matters.

22.2. The Client shall be responsible for understanding and complying with any legal, tax and regulatory constraints or obligations that may apply to it in any relevant jurisdiction and for the consequences thereof, particularly the obligation to declare its assets, income and the transactions carried out. The Client confirms that it shall solely be liable for any damage or loss that arises from applicable legal, tax and regulatory obligations or constraints.

22.3. Fiducia responsibility is relieved in case of omission by the Client to answer correctly and fully in relation to any tax duties in a relevant country of residence or to any country which might consider the Client as being liable for taxes.

23. THIRD PARTY SERVICE PROVIDERS

23.1. Fiducia is entitled to delegate or outsource the performance of any Service under this Agreement to Fiducia's parent or any of it Group entities or an external suitable, qualified, and experienced third-party Service Providers. These parties may be located in jurisdiction outside the DIFC.

23.2. Fiducia may also introduce the Client to a third-party Service Provider and arrange for such third-party Service Provider to provide the Client directly with Services relating to Arranging Custody, Investments, Credit or other agreed upon requirements. The Client acknowledges and agrees that Fiducia shall not be liable for any liability or loss (including lost profits or loss of opportunity) arising out of or in relation to any Services arranged for the Client in this respect.

23.3. The Client acknowledges that certain Service Providers may provide monetary benefits to Fiducia, which may be based on the transaction fees or margins charged by the Service Providers to the Client or on the value of Investments held by the Client with these Providers (so-called retrocessions). Furthermore, certain Service Providers may also agree to grant benefits to Fiducia for the referral of business (i.e finder's fees or introducer fees or referral fees). The Client understands and agrees that such monetary benefits received by Fiducia will be to Fiducia's benefit and will not be refunded back to the Client unless otherwise stated in Annexure 1 of this Agreement.

24. NO AGENCY

In providing the Services to the Client, Fiducia:

(a) does not act as the agent, partner, employee or representative of any relevant third-party service provider; and

(b) has no authority to legally bind any third-party Service Provider to any obligations, and accordingly, all the Client's instructions, orders, inquiries and requests relayed or routed through Fiducia are subject to such third-party Service Provider's confirmation and acceptance.

25. TRANSFER

The Client's rights under this Agreement are not capable of assignment or transfer and the Client's obligations shall not, without Fiducia's express written consent, be capable of performance by anyone. Fiducia may, without the Client's consent, assign or transfer all or any of its rights and obligations under this Agreement (which includes for the avoidance of doubt any facility which forms part of this Agreement) either to another appropriately authorized member of Fiducia Group, parent company or an entity that it merges, consolidates or amalgamates with or to which it transfers all or substantially all of its assets.

26. WAIVER

Any waiver of any part of this Agreement must be in writing and executed by the parties hereto unless expressly stated otherwise in this Agreement.

27. AMENDMENT

Fiducia's ability to provide to the Client the Services under this Client Agreement may be subject to the execution of further agreements and the provision of acceptable know-your-client information and documentation. To the extent permitted by law and the DFSA Rules, Fiducia may change and vary any provision of this Agreement by giving written notice to the Client on their registered communication mode. The Client shall be deemed to have accepted the change if the Client continues to use the Services following the notice of such change.

28. NOTICES

28.1. Notices shall be in writing, in English and addressed:

(a) to the Client using the contact details on record with Fiducia; and

(b) to Fiducia using the contact details shown in this Agreement or such other addresses as Fiducia may notify in writing from time to time.

28.2. Notices shall be deemed given to the Client in accordance with Clauses 6 (*Client Instructions*). The date of the copies or mailing documentation held by Fiducia shall be deemed to be proof of the time of dispatch or transmission.

28.3. Notices will only be deemed to be validly given or served by the Client to Fiducia, when received by Fiducia.

28.4. In any case Fiducia shall not be responsible for any delay or for any failure to fulfill any of their duties hereunder if such delay or failure is directly or indirectly caused by force majeure, failure or malfunction of nay telecommunication or computer services, acts of God, insurrection, or any other cause or circumstance beyond their control.

29. RIGHTS OF THIRD PARTIES

The obligations under this Agreement are binding, and the rights will be enforceable by, the Parties and their respective successors, permitted assigns and executors. Except where expressly provided otherwise, no express term of this Agreement (nor any term implied under it) is enforceable pursuant by any person who is not a party to it.

30. TIME ZONE / PUBLIC HOLIDAYS

The Client acknowledges that for all transactions with Fiducia, the business days, public holidays and time zones of the United Arab Emirates shall apply.

31. GOVERNING LAWS

This Agreement and all rights and obligations of Fiducia and the Client arising under or in connection with or related to this letter of agreement will be governed by and construed, performed and enforced in accordance with the DIFC laws in force, whereas any disputes will be settled exclusively by DIFC courts.

32. DECLARATIONS

32.1 The Client acknowledges:

(a) all of the information provided to Fiducia is true, accurate and complete in every material respect and that it is responsible for updating Fiducia in writing of any changes to the information provided;

(b) there is an inherent risk of incurring a loss when incurring indebtedness or when effecting transactions in Investments and the Client confirms that it understands and agrees to these risks and risks outlined in the Service Terms; and

(c) it has read, understood and agrees to be bound by this Agreement.

Sincerely,

For and on behalf of **Fiducia**:
Name
Designation
Date

Agreed and accepted for and on behalf of **[Client Name]**

Name
Designation
Date

SERVICE TERMS - FINANCIAL ADVISORY AND ARRANGING SERVICES

These terms (*Financial Advisory and Arranging Services*) shall apply if Fiducia Capital Limited ("**Fiducia**") agrees to provide the Client (listed below) advisory or arranging services. This Schedule is subject to and is to be read in conjunction with the Client Agreement between Fiducia and the Client.

1. TRANSACTION

1.1 Fiducia shall provide advisory services to prospective investors on third-party financial products, including shares, debentures, discretionary portfolios, and third-party investment funds.. The investment team of Fiducia will discuss the merits of investing in investments and conduct a suitability assessment on the appropriateness of any investments for a Client prior to making a recommendation.

1.2 Fiducia will provide arranging services to investors in both Group funds and third-party financial products, including shares and debentures. Once a client decides to invest in either a Group fund or a financial product, Fiducia will arrange for the necessary subscription agreements and associated documentation to be executed where investors invest in funds, plus arrange for securities to be either purchased or sold via third party financial intermediaries, including banks and brokers.

1.3 Fiducia is dealing with the third parties (Client's custodians/banks and brokers) and will enter partnerships with select product providers and seek out the best investments opportunities that meet Clients' needs and risk appetite. Fiducia enters an investment advisory agreement and provide the Clients with on-going investment advisory services.

2. EXCLUSIVITY

2.1 Fiducia receives investment advisory mandates from the Clients. Clients signs and transmits orders on transactions directly in respect of their account held in custody with the respective bank.

3. SERVICES

3.1 Arranging Deals in Investment and Advising on Financial Products services may be provided by Fiducia by:

(a) reviewing the Client's financial condition, operations, competitive environment, prospects, and related matters;

(b) analyzing the information provided by the Client including audited financial statements, financial model, asset registrar and specifications, valuation range, and other relevant documents;

(c) advising and discussing investment matters;

(d) assembling and administering the data room;

(e) identifying regional and international potential investors, both financial and strategic;

(f) soliciting, coordinating, and evaluating indications of interest and proposals;

(g) advising the Client as to the structure of their portfolios;

(h) providing debt/capital advisory, debt/capital restructuring or advisory on debt/equity/hybrid issuance in relation to services.

3.2 According to Clause 4 of this Agreement, Fiducia has considered Suitability of the Client under the parameters set out in the Client Suitability Assessment Form as agreed with the Client and as may be amended from time to time with the Client's agreement.

3.3 Fiducia will only provide advisory and arranging services in accordance with the terms of this Service Terms and Fiducia is not authorized to place orders or act on a discretionary basis on behalf of the Client where the Client is engaged with Fiducia for financial advisory and arranging services only. It is intended that the execution of the transactions will be the responsibility of the Service Providers who are expected to act on the receipt of the Client's direct instructions.

3.4 In the instance of any Service Provider appointed by the Client, the Client may separately authorize Fiducia to Arrange Deals in Investments on behalf of the Client to facilitate execution of purchase and sale of Investments (whether or not these have been advised by Fiducia to the Client.)

4. FEES

4.1 In consideration of Fiducia providing the services agreed under this Agreement, the fees Client agrees are calculated stated in Annexure 1 as set out in Clause 7 of the Agreement.

4.2 During its appointment, Fiducia shall provide advisory and arranging services in relation to Investments subject to compliance with the designated Accounts as instructed and authorized by the Client ("**Assets under Advice**").

4.3 Advice on Investments external to the designated Assets under Advice pursuant to this Agreement may be charged separately under a transaction specific fee structure and will be negotiated with the Client prior to executing any such advice.

5. EXPENSES

Regardless of whether any Transaction is consummated, Fiducia shall be entitled to reimbursement of its reasonable out-of-pocket expenses incurred from time to time during the Term in connection with the Services, including but not limited to Fiducia's travel and accommodation expenses. Any such expenses shall require the prior written approval of the Client and shall be evidenced by written documentation prior to reimbursement. Reimbursement by the Client to the Fiducia will be made immediately upon the Client's receipt of said documentation.

6. RISKS

The Client acknowledges and agrees that:

(a) all forms of Investment which may be communicated to the Client involve risk and that the value of Investments and the income derived from them can fall as well as rise and there is no certainty in recouping the amount of money originally invested;

(b) the income from certain Investments can fluctuate in value in money terms, while certain investments do not generate any income. There also can be no assurance that the performance of Investments will achieve the stated objectives;

(c) there exists a potential risk of significant and rapid losses in all types of Investments, even for those investments considered in theory to be less risky and as conservative in nature;

(d) past performance of Investments is no guarantee of future results;

(e) certain Investments may not be liquid or may not be sold prior to maturity save at severe costs and penalties; and

(f) that advice or opinions given by Fiducia may quickly become outdated or unsuitable due to market activity, fluctuations and developments and may therefore only be of temporary relevance. Any investment decisions that the Client makes based on Fiducia's advice, should therefore be made as soon as possible once the advice has been received.

7. STATEMENTS AND REPORTS

7.1 Fiducia reviews the applicable bank statement(s) of the Client as made available by the Client or the Client's Service Providers and provides the Client with a consolidated report of the designated accounts in such form as it deems appropriate and at such intervals as may be agreed between the Client and Fiducia from time to time. In the event when the advisor prepares and sends consolidated statements (the "**reports**") of the Client's holdings for all the Assets under Advice to the Client.

7.2 Fiducia does not warrant the accuracy or completeness of the information and expressly disclaims liability for errors or omissions in these materials as they are. As such the statements provided to the Client separately by the Service Providers will continue to serve as the primary source of information pertaining to the Clients Investments as held with these Service Providers. Therefore, Fiducia will not be responsible for any errors made in the reports owing to any failures on the part of the Service Providers in reflecting a true and fair picture of the Client's Investments.

Agreed and accepted for and on behalf of **[Client Name]**

Name
Designation
Date

SERVICE TERMS – DISCRETIONARY ASSET MANAGEMENT

These terms (*Discretionary Asset Management*) shall apply if Fiducia agrees to provide the Client discretionary asset management services. These terms are subject to and are to be read in conjunction with the Client Agreement between Fiducia and the Client (together referred to as the "**Agreement**").

1. SERVICE TERMS

1.1 The following terms shall apply to any discretionary asset management services provided by Fiducia:

(a) The Client appoints Fiducia to manage Client's assets/ portfolios held with third-party custodians and take investment decisions on behalf of the Client, whereas the decisions will be made in line with the signed mandate and the agreed strategy. The mandate and the strategy will determine the type of financial instruments/ products to be invested in, the risk profile and the composition of the portfolio. Under this mandate, investments decisions are made by Fiducia and Fiducia ensures that the proposed mandate and strategy is suitable for the Client and that the Client has a sufficient understanding of the mandate and the invested financial instruments.

(b) Where Fiducia holds and controls Client's Assets in relation to Discretionary Asset Management Services, the Client irrevocably authorizes Fiducia to:

(i) establish and maintain an account for purposes of the Investments. The account may be opened at any licensed bank at Fiducia discretion and shall be used to enable the Client to deposit its funds for the purposes of these terms. An account established to hold Client Assets, in the name or under the control of the Firm, must always include the words "Client Account" in its title.

(ii) Funds to be deposited by the Client pursuant to these terms shall be allocated by Fiducia for the purposes of providing the Services for the benefit of the Client and shall be separate from Fiducia's funds and money;

(iii) deposit and withdraw money or other Investments and settle transactions from the account as stipulated in these terms; and

(iv) subject to these terms, execute transactions (where applicable, in the name of Fiducia) on behalf of the Client.

(c) By giving an Instruction, the Client unconditionally and irrevocably appoints Fiducia as its agent, with full power of delegation and substitution, to deal with any brokers, custodians, fund managers, agents, middlemen, counterparties or others, to execute and deliver any documents and take any other action which may be deemed necessary or appropriate by Fiducia in order to execute the transactions and other dealings or trading relating thereto or connected therewith pursuant to such Instructions.

(d) The Client acknowledges that it will be responsible as a principal for settlement of all transactions effected by Fiducia pursuant to Instructions given or purported to be given by the Client and for performing all obligations and meeting all liabilities pursuant to these terms. In settling any transaction, Fiducia acts on behalf of the Client, and it shall not be liable for any risk of settlement failure or counterparty default. The Client acknowledges that the rights and obligations of the parties under these terms shall not be affected by any agreement or relationship between the Client and any other person.

(e) Fiducia shall use all reasonable efforts to affect a transaction as instructed by the Client but shall be under no liability for any loss or expense that the Client incurs by reason of any delay, market disruption, external error or change in market conditions before executing any particular transaction.

(f) For the purpose of enabling Fiducia to carry out Instructions, the Client confers on Fiducia all powers, authorities and discretions which are necessary for or reasonably incidental to, or customary in, enabling Fiducia to carry out the Client's Instructions and the Client agrees and undertakes to ratify all such actions or steps that Fiducia may take in exercise of such powers, authorities and discretions. The powers, authorities and discretions of Fiducia shall, without limitation, include the power to enter into and perform all contracts, agreements, and other undertakings that may, in the opinion of Fiducia, be necessary, advisable or incidental to the execution of the transactions and/or to the performance of its obligations under these terms.

(g) Fiducia shall have a general lien with a power of sale and a right to set-off over all Investments, deposits and other investments including any proceeds thereof which are held by Fiducia for the Client to discharge all of the Client's obligations to Fiducia under these terms.

(h) In order to undertake the activities mentioned under managing assets, Fiducia will require holding and controlling the Client Assets endorsement. Therefore, Fiducia has implemented systems and controls, policies and procedures to comply with the DFSA COB Module to ensure that all Client Monies received are segregated from its own money and placed into Client Money Accounts in order to safeguard the Client Money.

(i) The Client is subject to the protection conferred by the DFSA's Client Money Provisions and as a consequence in the event of Fiducia's insolvency, winding up or other distribution event stipulated by the DFSA, the Client's Money will be subject to the DFSA's Client Money Distributions Rules.

2. INSTRUCTIONS

2.1 With respect to instructions or orders, the Client acknowledges and agrees that:

(a) Fiducia undertakes to pass instructions or orders received given by its authorized signatory (ies), as described in, during usual business hours to the relevant entity or other third-party Service Provider as requested by the Client, for action or execution as appropriate notwithstanding that such instructions or orders are not followed by a written confirmation;

(b) due to the time differences between the United Arab Emirates (UAE) and third-party location(s), or the public holidays applicable to each of the parties, the instructions or orders may not be actioned or executed on the same day. For the purposes of this Agreement, usual business hours in the UAE refer to the business hours from 9am to 6pm from Monday through Friday. It is specified that any relevant account or portfolio may not be operated on Saturday and Sunday or on any public holiday in the country where such other third-party is located. Special arrangement will need to be made to accept instructions outside the usual business hours at our discretion;

(c) Fiducia is under no obligation to act on or pass on instructions, orders or other communication received via unapproved electronic means, mobile telephone, or to any other address or contact communicated to the Client in writing. Fiducia are under no obligation to pass on instructions or orders which are incorrectly signed or received outside of usual business hours. Except in the case of its own wilful default or neglect, Fiducia shall not be liable for any loss resulting from reliance on any invalid communications given or made or purported to be given or made by or on behalf of the Client;

(a) Fiducia may contact the Client to verify instructions prior to implementation. In exceptional circumstances (as determined by Fiducia on a case by case basis) oral instructions may be received by Fiducia. Any oral (including, without limitation, by telephone) must be confirmed promptly in writing and, in addition, facsimile instructions or electronic instructions by way of e-mail must be confirmed by a telephone call between the Parties. Fiducia may/may not carry out telephone or other instructions before written confirmation is received, and may refuse to act on any instruction if, in Fiducia's sole opinion, to do so would contravene any law of any jurisdiction;

(b) that Fiducia shall receive instructions or orders solely from the Client or the authorized signatory (ies), as provided in the Client Information Pack, and such authorized signatory (ies) may give a valid receipt and discharge to Fiducia in each case until receipt by Fiducia of written notification of a change or cancellation of such authority (for Individual Client) and accompanied by a certified board resolution in a form satisfactory to Fiducia authorizing the change or cancellation (for Corporate Client);

(a) that Fiducia or the Service Providers must receive all instructions, in relation to any Investment transactions to be executed, from the Client for any licensed arranging services, in line with the arrangements prescribed by the respective Service Providers.

(b) that Fiducia is entitled to refuse to carry out any instruction or order received, to limit certain instructions or to impose special terms and conditions on instructions or orders at any time, without being required to provide a reason for its decision. The Client hereby agrees that Fiducia and any third-party Service Providers will not be responsible for any liability or loss (including lost profits or loss of opportunity) arising out of or in relation to Fiducia's refusal to act altogether in any scenario contemplated in this Agreement; and

(c) That Fiducia may record any telephone calls made between Fiducia and the Client or the Client's agents, representatives and/or any third parties. Fiducia's records of all instructions, communications, commitments, notices, or requests given by the Client and/or the Client's agents, representatives and/or any third parties by telephone shall be conclusive proof thereof and such records shall be the Fiducia's sole property. Fiducia may rely and act on instructions commitments, notices, or requests without any receipt of written confirmation.

3. TRADE AND SETTLEMENT

3.1 All transactions effected under these terms will be subject to the rules and customs of the exchange or market and/or any clearinghouse through which the transactions are executed and to any applicable law and the governing documents of the relevant Investments. The Client understands that transactions may be governed by foreign laws, rules and jurisdictions and the Client hereby accepts all consequences and risks in this respect and with no liability on Fiducia's' part.

3.2 Fiducia may combine sales or purchases on behalf of the Client with sales or purchases on behalf of other Clients or its own sales or purchases and where this results in a number of transactions at different prices, may average the prices obtained so that all the clients involved in the transactions pay or receive the same average price. Such combination may result in the Client obtaining sometimes a more and sometimes a less favorable price than have been achieved had the transactions been executed separately.

3.3 The Client authorizes Fiducia to conduct any foreign exchange transactions, at such rates of exchange as may prevail from time to time, that Fiducia deems reasonable or necessary to carry out transactions or to protect Fiducia rights under these terms, and the Client agrees to assume all risks associated with foreign exchange and currency conversion.

3.4 Fiducia may, but shall not be obliged, to act on the Client's Instructions to purchase Investments without first receiving the funds relative to their purchase.

4. SERVICE PROVIDERS

4.1 In connection with providing the Services, Fiducia shall have the right to appoint third party Service Providers to obtain assistance in executing the Services or any part thereof under these terms and has the right and authority in disclosing information to such a relevant third party for the purposes of the provision of the Services pursuant to these terms.

4.2 The Client agrees to provide any relevant information or documentation requested by Fiducia to enable the third-party Service Providers to provide their services.

4.3 Fiducia shall exercise reasonable professional care in the selection of third-party Service Providers in connection with these terms. However, any third party shall act as an independent contractor, and shall not be deemed to be an agent or representative of Fiducia.

5. FEES

Unless otherwise agreed in writing, Fiducia will charge the fees set out in the schedule to these terms for its services under these terms.

6. TERMINATION

6.1 The services under these terms may be terminated in accordance with the Agreement.

6.2 Any transactions relating to Investments already initiated shall not be affected by the termination of the Agreement, unless this is specifically requested in writing by the Client with an acknowledgement to pay all the fees, costs and expenses (including any break costs) in this regard. Any outstanding fees, costs and expenses incurred by Fiducia at the time of termination or resulting from such termination shall become due and payable upon termination.

6.3 Upon termination of the Agreement, Fiducia shall (at the Client's cost) co-operate with and take such steps as the Client may reasonably require in order to effect orderly termination of the Agreement and to transfer or divest any Investment, at the direction of the Client. For this purpose, the Client must provide the Client with the details of that other bank, financial institution or third-party Service Provider, within the timeframe communicated to by Fiducia following the date of termination (or instead the Client may instruct Fiducia to sell some or all of the Investments). The Client acknowledges that where any divestments are required, it may be in the interests of the Client and the market for these to be done over a period greater than the termination notice period and, where that is the case, the Client will continue to pay the fees related to those Investments which are still under the direction of Fiducia until such time as the last Investment has been transferred of divested.

6.4 Fiducia may without any further notice to or demand on the Client, sell or arrange to sell all or part of the Investments to ensure that there are sufficient cleared funds to cover any amounts due to Fiducia or any third party Service Provider; if Fiducia decides that it is impossible or impracticable to transfer the Investments to another financial institution or third party Service Provider that the Client has designated or if the Client has not complied with Clause 6.3, and the Client agrees to indemnify and hold harmless Fiducia and any third party Service Providers for any liability or losses as a result thereof.

6.5 If any funds remain in an account following the settlement in full of all obligations owed by the Client to Fiducia and any third party Service Providers in accordance with the Agreement, Fiducia shall transfer such funds into an account designated by the Client, or may issue a demand draft in respect of such amount which may be sent to the Client's address on record

with Fiducia or may be retained for collection by the Client.The Client's rights to separately cancel specific investments with third parties or investments made under will depend on the type of investment placed for the Client and the jurisdiction in which the investment is based. The Client's rights regarding the cancellation of investment products will be set out in the product literature, which must be read thoroughly.

7. CLIENT REPORTING

7.1 In case Fiducia holds or controls Client Investments for a Client, it registers or records all Safe Custody Investments in the legal title of a Client Account or, due to the nature of the law or market practice, it is not feasible to do otherwise. Fiducia sends a statement to a Professional Client at other intervals as agreed in writing with the Client.

7.2 Fiducia has implemented the required process to adhere to the DFSA Safe Custody provisions and in case Fiducia advises the Client to hold Investments with a custodian bank chosen by Fiducia, and this custodian bank is outside the DIFC, it will provide to the Client prior to the custody account being opened, a disclosure which should suggest that their investments may be held in a jurisdiction outside the DIFC and the market practices, insolvency and legal regime applicable in that jurisdiction may differ from the regime applicable in the DIFC.

7.3 The statement includes; a list of the Client's Safe Custody Investments as at the date of reporting, a list of that Client's Collateral and the market value of that Collateral as at the date of reporting; and details of any Client Money held by Fiducia as at the date of reporting. The statement sent to the Client must be prepared within 25 business days of the statement date.

8. RISKS

8.1 The Client acknowledges and agrees that:

(a) all forms of Investment which may be recommended to the Client involve risk and that the value of Investments and the income derived from them can fall as well as rise and there is no certainty in recouping the amount of money originally invested;

(b) the income from certain Investments can fluctuate in value in money terms, while certain investments do not generate any income. There also can be no assurance that the performance of Investments will achieve the stated objectives;

(c) there exists a potential risk of significant and rapid losses in all types of Investments, even for those investments considered in theory to be less risky and as conservative in nature;

(d) past performance of Investments is no guarantee of future results;

(e) certain Investments may not be liquid or may not be sold prior to maturity save at severe costs and penalties.

Agreed and accepted for and on behalf of **[Client Name]**

Name
Designation
Date
Signature

SERVICE TERMS – ARRANGING CUSTODY

Arranging Custody shall apply if Fiducia Capital Limited ("**Fiducia**") agrees to provide the Client custody services listed. This term is subject to and is to be read in conjunction with the Client Agreement between Fiducia and the Client (together the "Agreement").

1. ARRANGING CUSTODY

1.1 The Client acknowledges and agrees that where Fiducia seeks to Arrange Custody on its behalf pursuant to these terms:

(i) the Safe Custody Investment may be held in a jurisdiction outside the DIFC and the market practices, insolvency and legal regime applicable in that jurisdiction will differ from the regime applicable in the DIFC;

(j) The Client understands and agrees that it is the Client's sole responsibility to open Accounts and that Fiducia will not provide custody or hold any monies or Investments on behalf of the Client; and

(k) Fiducia assumes no liability or responsibility arising from such custodial services provided by the relevant third party whatsoever.

2. PROVISIONS

2.1 Where Fiducia facilitates appointment of a custody provider for the Client by arranging custody. In this regard, Fiducia can recommend suitable custodians, facilitate negotiation of terms of the contract between the Client and the recommended custody provider, assist the Client in completing related processes and documentation to open new accounts with the recommended custody provider and aid in transmitting information between the Client and the recommended custody provider.

2.2 Prior to Arranging Custody with a non-DIFC custodian, which is authorized and supervised by a Financial Services Regulator, Fiducia undertakes an assessment of that custodian, on reasonable grounds, to ensure that it is suitable to hold the Safe Custody Investments for the Client.

2.3 When assessing the suitability of a non-DIFC custodian, Fiducia ensures that the non-DIFC custodian will provide protections equivalent to the protections conferred in the Safe Custody Provisions in the DFSA COB Module.

2.4 The Client has the sole discretion to decide whether the Client would like to appoint a custody provider based on the recommendation of Fiducia and whether to avail of Fiducia's services for Arranging Custody. The Client remains responsible to open, activate and operate any Accounts with the recommended custodian and be compliant with the terms and conditions that the custody provider may specify with regard to the opening and operation of the Client's Accounts.

2.5 Notwithstanding anything in the Agreement to the contrary, any transaction may be settled in accordance with the customary procedures for such transaction in the market in which such transaction occurs.

3. FEES

Fiducia introduces Clients to custodian banks and may receive a retrocession for the introduction. Unless otherwise agreed in writing, Fiducia will charge the fees set out in the Schedule of Fees in Annexure 1 to these terms for its services under these terms.

Agreed and accepted for and on behalf of **[Client Name]**

Name
Designation
Date
Signature

ANNEXURE 1

FEE SCHEDULE & AGREEMENT
(PLEASE COMPLETE AND SIGN IF APPLICABLE)

The fee payable by the Client to the Fiducia is calculated based on the fee structure agreed with the Client. Any revision/ change in the fee rate will require an addendum to be attached to the existing Agreement.

To the extent that VAT or any other taxes are payable by Fiducia in respect of any service made by the Firm to the Client under or in connection with this Agreement, the consideration to be provided under this Agreement is increased by an amount equal to the applicable VAT or any other taxes.

The following is an overview of the products from which Fiducia may receive payments, together with indicative fee amounts (based on total value of the amount invested), in relation to the Services.

Money Market Funds	Up to 1%
Property Funds	Up to 1.5%
Collective Investment Schemes	Up to 2%
Insurance Bonds	Up to 2%
Property/Private Equity Funds	Up to 2%
Hedge Funds	Up to 3%
Venture Trust	Up to 3.5%
Structured Products	Up to 5%
CDOs/CLOs/CBOs	Up to 5%
Private Placements	Up to 5%
Mortgage Services	Up to 2%
Equities/Warrants/ETF	Up to 2.5%
Options (on stocks, index, futures)	Up to $200/contract
Fixed Income (High Grade)	Up to 2%
Fixed Income (Other)	Up to 3%
Foreign Exchange (including options)	Up to 5%
Dual Currency Deposits	Up to 3% p.a.
Safe Keeping Fees	Up to 1% p.a.
Loan Fees (Arrangement)	Up to 2%
Loan Spread Fees	Up to 2% p.a.

Other Fees:

_____
_____
_____

The Firm
Fiducia Capital Limited

_____

_____

Name:
Designation:

_____

Name:
Designation:

Corporate/Individual Client

Name:

_____

Name:

ANNEXURE 2

AUTHORISATION AND INDEMNITY IN RESPECT OF TELEPHONE, EMAIL AND TELEX INSTRUCTIONS

1. I/We, the undersigned, hereby request and authorize Fiducia Capital Limited ("**Fiducia**") to act on any instructions and/or communications, either orally or in writing by way of telephone, telegram, cable, facsimile, email or by any other means – ("the instructions") given or signed or purportedly given to be given or sent by me/us.

2. In consideration of Fiducia agreeing to act as aforesaid, I/We hereby agree and undertake:-

    a. To implement and maintain security procedures and measures in order to ensure the protection of any of the instructions given against the risk of unauthorized access or alterations;

    b. That Fiducia shall have no responsibilities whatsoever for acting or relying on any of the instructions;

    c. That Fiducia shall have no responsibility or liability for the non-performance of your obligations hereunder by reason of any cause beyond your control, including, without limitations, any breakdown or failure of transmission or communication or computer facilities;

    d. To fully indemnify and at all times keep Fiducia fully indemnified from and against all claims and demands, actions and proceedings, loss, expenses and costs (including legal costs on a full indemnity basis) inclusive of any goods and services tax and all other liabilities of whatsoever nature or description resulting directly or indirectly from its reliance on any of the instructions;

    e. That the provisions of this letter shall remain in full force and effect until Fiducia receive notice of revocation in writing from me/us, saving that such revocation will not release me/us from any liability and indemnity under this letter in respect of any omission or act done or performed or carried out in accordance with the provisions of this letter prior to the date of receipt of such notice by Fiducia.

3. Notwithstanding the above, where Fiducia receive the instructions by:

    (a) Telephone or orally, Fiducia shall not be obliged to act except upon receipt of confirmation of such instructions in writing, if Fiducia at its discretion shall so require.

    (b) Facsimile, Fiducia shall not be obliged to act upon the contents of the facsimile which appears to bear my/our authorized signatory(ies) except upon confirmation of such instructions by telephone from me/us (if Fiducia at its discretion shall so require). Fiducia shall be under no duty or obligation to enquire into the genuineness or authenticity of the instructions given or of the authorized signatory(ies) signed or purportedly signed by me/us.

4. I/We hereby acknowledges and agrees that any telephone calls made between Fiducia and me/us or my/our agents or my/our representatives or any third parties may be recorded by Fiducia. Fiducia's records of all instructions, communications, commitments, notices or requests given by me/us or my/our agents or my/our representatives or any third parties by telephone shall be conclusive proof thereof and such records shall be Fiducia's sole property. Fiducia may rely and act on instructions, commitments, notices or requests without any receipt of written confirmation.

5. Fiducia shall be entitled in its absolute discretion to refuse to comply with any of the instructions which in its opinion are unclear, incomplete, illegible or ambiguous or which may cause Fiducia to contravene any law or regulation for the time being in force Fiducia shall not incur any liability to me/us as a result of such refusal to act.

6. Fiducia is entitled to rely and act on the instructions given or purportedly given by me/us either singly or jointly.

7. The rights and obligations of the parties herein shall be governed and interpreted in accordance with the laws of the DIFC.

Corporate/Individual Client

Sign _____ Sign _____